

SOVEREIGNTY

THE CENTRAL QUESTION AND → BODIN: ABSOLUTE, PERPETUAL, UNDIVIDED → AUSTIN'S COMMAND THEORY: THE → THE EXTERNAL CRITIQUE OF → Kelsen and Hart: The → Laski's Pluralism: The Rejection

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g6 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00

THE CENTRAL QUESTION AND THE ANALYTICAL AXES OF SOVEREIGNTY

THE CENTRAL QUESTION AND THE ANALYTICAL AXES OF SOVEREIGNTY

WHERE IS FINAL AUTHORITY LOCATED, HOW IS IT STRUCTURED

ROOT CONCEPT

SUPREME, FINAL AND AUTHORITATIVE POWER WITHIN A POLITICAL COMMUNITY

NOT MERE FORCE (A BANDIT COERCES)

NOT THE GOVERNMENT OF THE DAY

NOT THE STATE

INTERNAL/EXTERNAL LEGAL/POLITICAL DE JURE/DE FACTO TITULAR/ACTUAL SUPREMACY WITHIN COMPETENT

SOURCE / DOCTRINE

- CENTRAL QUESTION → where is final authority LOCATED, how is it STRUCTURED, how far is it LIMITED?
- ROOT CONCEPT: supreme, final and authoritative power within a political community
- NOT mere force (a bandit coerces)

ARGUMENT / MECHANISM

- NOT the government of the day
- NOT the state
- INTERNAL/EXTERNAL LEGAL/POLITICAL DE JURE/DE FACTO TITULAR/ACTUAL supremacy within competent law- lawful title vs formal dignity vs

IMPLICATION / VERDICT

- vs independence maker vs the effective real power of among states real power obedience decision
- CONTROL: distinguish the axes FIRST, locate the thinker SECOND, adjudicate LAST.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONTROL: distinguish the axes FIRST, locate the thinker SECOND, adjudicate LAST.

01

STAGE 01

BODIN: ABSOLUTE, PERPETUAL, UNDIVIDED - AND STILL BOUNDED

ABSOLUTE, PERPETUAL, UNDIVIDED - AND STILL BOUNDED

CONFESSIONAL CIVIL WAR; CHURCHES, ESTATES AND FEUDAL LORDS EACH

SOVEREIGNTY IS THE ABSOLUTE AND PERPETUAL POWER OF A

ABSOLUTE PERPETUAL UNDIVIDED NO HUMAN SUPERIOR ATTACHED TO THE

PRE-EMINENT MARK

POWER TO MAKE AND UNMAKE LAW FOR ALL SUBJECTS

LIMITS THAT SURVIVE

DIVINE LAW

CONDITION: confessional civil war; churches, estates and feudal lords each claim finality

DEFINITION → sovereignty is the ABSOLUTE and PERPETUAL power of a commonwealth

ABSOLUTE PERPETUAL UNDIVIDED no human superior attached to the OFFICE, two final wills would inside

PRE-EMINENT MARK → power to MAKE and UNMAKE law for all subjects in general, without

LIMITS THAT SURVIVE → divine law

SOURCE / DOCTRINE

- CONDITION: confessional civil war; churches, estates and feudal lords each claim finality
- DEFINITION → sovereignty is the ABSOLUTE and PERPETUAL power of a commonwealth
- ABSOLUTE PERPETUAL UNDIVIDED no human superior attached to the OFFICE, two final wills would inside the realm not to a magistrate revive civil war
- PRE-EMINENT MARK → power to MAKE and UNMAKE law for all subjects in general, without the consent of any superior

ARGUMENT / MECHANISM

- LIMITS THAT SURVIVE → divine law
- natural law
- fundamental laws (leges imperii)
- LEGIBUS SOLUTUS → released from ORDINARY POSITIVE LAW only; not from higher law

IMPLICATION / VERDICT

- TRAP → Bodin is not Hobbes before Hobbes; supreme is not morally empty
- VERDICT → first systematic theory and indispensable vocabulary; institutional guarantees against abuse remain weak.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → first systematic theory and indispensable vocabulary; institutional guarantees against abuse remain weak.

02

STAGE 02

AUSTIN'S COMMAND THEORY: THE MECHANISM OF LEGAL SOVEREIGNTY

AUSTIN'S COMMAND THEORY

THE MECHANISM OF LEGAL SOVEREIGNTY

ANALYTICAL JURISPRUDENCE

DEFINE LAW AND SOVEREIGNTY WITH JURISTIC PRECISION

DETERMINE HUMAN SUPERIOR (AN IDENTIFIABLE PERSON OR BODY, NEVER

HABITUAL OBEDIENCE FROM THE BULK OF A GIVEN SOCIETY

OBEDIENCE TO NO OTHER SUPERIOR V THEREFORE

COMMAND → SANCTION → DUTY → POSITIVE LAW

PROJECT → analytical jurisprudence: define law and sovereignty with juristic precision

DETERMINE HUMAN SUPERIOR (an identifiable person or body, never an abstraction) v receives

HABITUAL OBEDIENCE from the BULK of a given society v and renders

OBEDIENCE TO NO OTHER SUPERIOR v therefore

COMMAND → SANCTION → DUTY → POSITIVE LAW

SOURCE / DOCTRINE

- PROJECT → analytical jurisprudence: define law and sovereignty with juristic precision
- DETERMINE HUMAN SUPERIOR (an identifiable person or body, never an abstraction) v receives
- HABITUAL OBEDIENCE from the BULK of a given society v and renders

ARGUMENT / MECHANISM

- OBEDIENCE TO NO OTHER SUPERIOR v therefore
- COMMAND → SANCTION → DUTY → POSITIVE LAW
- DETERMINE ABSOLUTE INDIVISIBLE ILLIMITABLE INALIENABLE identifiable no legal finality no superior transfer ends limit unpartitionable sovereignty

IMPLICATION / VERDICT

- SOURCE → The Province of Jurisprudence Determined, 1832
- TRAP → Austin's sovereign is NOT the state; it is a determinate superior.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → Austin's sovereign is NOT the state; it is a determinate superior.

03

STAGE 03

THE EXTERNAL CRITIQUE OF AUSTIN AND THE DEMOCRACY VERDICT

OBEDIENCE TO NO OTHER SUPERIOR V THEREFORE

COMMAND --> SANCTION --> DUTY --> POSITIVE LAW

PROJECT -- analytical jurisprudence: define law and sovereignty with juristic precision

DETERMINE HUMAN SUPERIOR (an identifiable person or body, never an abstraction) v receives

HABITUAL OBEDIENCE from the BULK of a given society v and renders

OBEDIENCE TO NO OTHER SUPERIOR v therefore

COMMAND --> SANCTION --> DUTY --> POSITIVE LAW

SOURCE / DOCTRINE

- PROJECT -- analytical jurisprudence: define law and sovereignty with juristic precision
- DETERMINE HUMAN SUPERIOR (an identifiable person or body, never an abstraction) v receives
- HABITUAL OBEDIENCE from the BULK of a given society v and renders

ARGUMENT / MECHANISM

- OBEDIENCE TO NO OTHER SUPERIOR v therefore
- COMMAND --> SANCTION --> DUTY --> POSITIVE LAW
- DETERMINE ABSOLUTE INDIVISIBLE ILLIMITABLE INALIENABLE identifiable no legal finality no superior transfer ends limit unpartitionable sovereignty

IMPLICATION / VERDICT

- SOURCE -- The Province of Jurisprudence Determined, 1832
- TRAP -- Austin's sovereign is NOT the state; it is a determinate superior.

ANSWER-GRABBING LINE -- WRITE/ADAPT IN THE EXAM: TRAP -- Austin's sovereign is NOT the state; it is a determinate superior.

03

STAGE 03

THE EXTERNAL CRITIQUE OF AUSTIN AND THE DEMOCRACY VERDICT

THE EXTERNAL CRITIQUE OF AUSTIN AND THE DEMOCRACY VERDICT

MONIST REPLY

RESIDUAL FEDERALISM

NO SINGLE DETERMINATE

FINALITY RELOCATED TO THE

SUPERIOR IN A FEDERATION

CONSTITUENT POWER; THAT

SHIFTS THE PROBLEM INTERNATIONAL

superior in a federation	constituent power; that		
command	widely judged artificial popular	the people rule but are	legal indeterminacy admitted;
sovereignty	legally indeterminate	political finality conceded	
Maine: Ranjit	despotic power coexisted	authority is often personal	
Singh	with untouched custom	and socially embedded	

DOCTRINE / CLAIM

- MONIST REPLY / RESIDUAL federalism
- no single determinate
- finality relocated to the
- superior in a federation
- constituent power; that

OBJECTION / PRESSURE

- but law is over-narrowed custom
- obedience can PRECEDE
- tacit adoption by courts
- widely judged artificial popular
- the people rule but are

REPLY / RESIDUAL

- despotic power coexisted
- authority is often personal
- with untouched custom
- and socially embedded
- DEMOCRACY -- narrow legal sense: compatible in form

ANSWER-GRABBING LINE -- WRITE/ADAPT IN THE EXAM: command | widely judged artificial popular | the people rule but are | legal indeterminacy admitted;.

04

STAGE 04

KELSEN AND HART: THE INTERNAL REPAIR OF SUPREME LEGAL AUTHORITY

KELSEN AND HART

THE INTERNAL REPAIR OF SUPREME LEGAL AUTHORITY

THE COMMAND THEORY FAILS ON SUCCESSION, PERSISTENCE AND

POWER-CONFERRING RULES

KELSEN (GENERAL THEORY, 1945) HART (THE CONCEPT OF LAW

GRUNDNORM (PRESUPPOSED) RULE OF RECOGNITION

^^ OFFICIAL CONVERGENT PRACTICE VALIDITY DESCENDS

+ INTERNAL POINT OF VIEW

SOURCE / DOCTRINE

- DIAGNOSIS -- the command theory fails on SUCCESSION, PERSISTENCE and
- POWER-CONFERRING RULES
- KELSEN (General Theory, 1945) HART (The Concept of Law, 1961)
- GRUNDNORM (presupposed) RULE OF RECOGNITION
- ^^ official convergent practice validity descends

ARGUMENT / MECHANISM

- + INTERNAL POINT OF VIEW
- CONSTITUTION SECONDARY RULES
- ^ recognition
- ^ cure uncertainty
- PRIMARY RULES (duties)

IMPLICATION / VERDICT

- ORDERS AND JUDGMENTS
- TERMINOLOGY -- having an obligation (internal) vs being obliged (gunman coercion)
- PLACEMENT -- both keep SUPREME LEGAL AUTHORITY and discard the PERSONAL sovereign
- TRAP -- never merge Kelsen, Hart and Laski; never date Kelsen to 1961.

ANSWER-GRABBING LINE -- WRITE/ADAPT IN THE EXAM: TRAP -- never merge Kelsen, Hart and Laski; never date Kelsen to 1961.

05

STAGE 05

LASKI'S PLURALISM: THE REJECTION AND ITS REPLACEMENT

LASKI'S PLURALISM

THE REJECTION AND ITS REPLACEMENT

THE MONISTIC DOCTRINE OF ABSOLUTE, INDIVISIBLE, UNLIMITED STATE SOVEREIGNTY

PHILOSOPHICALLY FALSE POLITICALLY DANGEROUS SOCIOLOGICALLY UNREAL LOYALTY IS PLURAL

REPLACEMENT ARCHITECTURE

THE STATE IS ONE ASSOCIATION AMONG MANY, THOUGH UNIQUELY

AUTHORITY IS DIVIDED AND SHARED WITH FUNCTIONAL ASSOCIATIONS

THE STATE MUST COMPETE FOR ALLEGIANCE BY WHAT IT

TARGET -- the monistic doctrine of absolute, indivisible, unlimited state sovereignty

PHILOSOPHICALLY FALSE POLITICALLY DANGEROUS SOCIOLOGICALLY UNREAL loyalty is plural

no supplies a doctrine of churches, unions, single will exhausts unquestioned power universities and local

REPLACEMENT ARCHITECTURE

SOURCE / DOCTRINE

- TARGET -- the monistic doctrine of absolute, indivisible, unlimited state sovereignty
- PHILOSOPHICALLY FALSE POLITICALLY DANGEROUS SOCIOLOGICALLY UNREAL loalty is plural

ARGUMENT / MECHANISM

- REPLACEMENT ARCHITECTURE
- the state is ONE ASSOCIATION AMONG MANY. though uniquely important

IMPLICATION / VERDICT

- the state must COMPETE FOR ALLEGIANCE by what it does
- TRAP -- pluralist. NOT anarchist: he limits the state. he does not abolish it

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → never merge Kelsen, Hart and Laski; never date Kelsen to 1961.

05

STAGE 05 LASKI'S PLURALISM: THE REJECTION AND ITS REPLACEMENT

LASKI'S PLURALISM THE REJECTION AND ITS REPLACEMENT THE MONISTIC DOCTRINE OF ABSOLUTE, INDIVISIBLE, UNLIMITED STATE SOVEREIGNTY PHILOSOPHICALLY FALSE POLITICALLY DANGEROUS SOCIOLOGICALLY UNREAL LOYALTY IS PLURAL REPLACEMENT ARCHITECTURE

THE STATE IS ONE ASSOCIATION AMONG MANY, THOUGH UNIQUELY AUTHORITY IS DIVIDED AND SHARED WITH FUNCTIONAL ASSOCIATIONS THE STATE MUST COMPETE FOR ALLEGIANCE BY WHAT IT

TARGET → the monistic doctrine of absolute, indivisible, unlimited state sovereignty

PHILOSOPHICALLY FALSE POLITICALLY DANGEROUS SOCIOLOGICALLY UNREAL loyalty is plural

no supplies a doctrine of churches, unions, single will exhausts unquestioned power universities and local

REPLACEMENT ARCHITECTURE

SOURCE / DOCTRINE

- TARGET → the monistic doctrine of absolute, indivisible, unlimited state sovereignty
- PHILOSOPHICALLY FALSE POLITICALLY DANGEROUS SOCIOLOGICALLY UNREAL loyalty is plural
- no supplies a doctrine of churches, unions, single will exhausts unquestioned power universities and local obligation against liberty

ARGUMENT / MECHANISM

- REPLACEMENT ARCHITECTURE
- the state is ONE ASSOCIATION AMONG MANY, though uniquely important
- authority is DIVIDED AND SHARED with functional associations

IMPLICATION / VERDICT

- the state must COMPETE FOR ALLEGIANCE by what it does
- TRAP → pluralist, NOT anarchist: he limits the state, he does not abolish it
- VERDICT → decisive corrective on liberty; incomplete on coordination, which is why examiners ask whether it is a satisfactory position.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → decisive corrective on liberty; incomplete on coordination, which is why examiners ask whether it is a satisfactory position.

06

STAGE 06 KAUTILYA INSIDE THE STATE: SEVEN LIMBS AND THE CALIBRATED ROD

KAUTILYA INSIDE THE STATE SEVEN LIMBS AND THE CALIBRATED ROD SOVEREIGNTY IS THE CAPACITY OF A STATE ORGANISM, NOT SAPTĀNGA (SEVEN LIMBS) SVĀMĪ RULER HEADSHIP AND DIRECTION AMĀTYA MINISTERS COUNSEL, ADMINISTRATION, EXECUTION JANAPADA TERRITORY/PEOPLE

THE PRODUCTIVE SOCIAL BASE DURGA FORTIFIED PLACE SECURITY AND PROTECTION KOŚA TREASURY

CLAIM → sovereignty is the CAPACITY of a state organism, not one man's bare will

SAPTĀNGA (seven limbs) svāmī ruler → headship and direction amātya ministers → counsel, administration, execution

the productive social base durga fortified place → security and protection kośa treasury → the

rule danḍa coercive force → enforcement, punishment, defence mitra ally → external support in the

SOURCE / DOCTRINE

- CLAIM → sovereignty is the CAPACITY of a state organism, not one man's bare will
- SAPTĀNGA (seven limbs) svāmī ruler → headship and direction amātya ministers → counsel, administration, execution janapada territory/people →
- the productive social base durga fortified place → security and protection kośa treasury → the material basis of

ARGUMENT / MECHANISM

- rule danḍa coercive force → enforcement, punishment, defence mitra ally → external support in the interstate order
- DAṆḌANĪTĪ, THE CALIBRATION DIAL too little <----- proper -----> too much
- MĀTSYA-NYĀYA order + welfare TYRANNY the strong devour the weak (yogakṣema) revolt, ruined janapada, empty kośa

IMPLICATION / VERDICT

- TRAP → the svāmī is DHARMA-BOUND; he is not Austin's illimitable superior.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → the svāmī is DHARMA-BOUND; he is not Austin's illimitable superior.

07

STAGE 07 KAUTILYA OUTSIDE THE STATE: CIRCLE, SIX-FOLD POLICY AND RELEVANCE

KAUTILYA OUTSIDE THE STATE CIRCLE, SIX-FOLD POLICY AND RELEVANCE SPATIAL LAYER THE MAṆḌALA AUTHORITY IS MEASURED AGAINST NEIGHBOURS [NEIGHBOUR'S NEIGHBOUR] NATURAL ALLY (SHARES A RIVAL) [IMMEDIATE NEIGHBOUR]

SPATIAL LAYER → the MAṆḌALA: authority is measured against neighbours

[neighbour's neighbour] = natural ALLY (shares a rival)

[immediate neighbour] = natural RIVAL (shares a border)

[the aspiring ruler] = vijigīṣu

SOURCE / DOCTRINE

- SPATIAL LAYER → the MAṆḌALA: authority is measured against neighbours
- [neighbour's neighbour] = natural ALLY (shares a rival)
- [immediate neighbour] = natural RIVAL (shares a border)
- [the aspiring ruler] = vijigīṣu
- 2025 PYQ LINE → prompt framing, NOT a verified Kautilya quotation

ARGUMENT / MECHANISM

- SUPPORTED THESIS → alliances and policies change with position, power and interest
- ŚAḌGUṆYA, the six-fold operational policy sandhi peace
- vighraha hostility
- yāna advance āsana poised inaction
- saṁśraya shelter

IMPLICATION / VERDICT

- dvaidhibhāva dual policy
- ETHICAL FRAME → YOGAKṢEMA: security plus well-being is the ruler's duty
- MODERN RELEVANCE → by THEME: state capacity, fiscal strength, intelligence, calibrated enforcement, strategic autonomy, welfare obligation
- LIMIT → SELECTIVE APPROPRIATION of principles, never reproduction of monarchy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → SELECTIVE APPROPRIATION of principles, never reproduction of monarchy.

SPATIAL LAYER → the MAṆḌALA: authority is measured against neighbours

[neighbour's neighbour] = natural ALLY (shares a rival)

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SOURCE / DOCTRINE

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ARGUMENT / MECHANISM

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- MODERN RELEVANCE → by THEME: state capacity, fiscal strength, intelligence, calibrated enforcement, strategic autonomy, welfare obligation
- LIMIT → SELECTIVE APPROPRIATION of principles, never reproduction of monarchy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → SELECTIVE APPROPRIATION of principles, never reproduction of monarchy.

08

STAGE 08

COMPARISON GRID AND THE OBJECTION-REPLY-RESIDUAL ENGINE

COMPARISON GRID AND THE OBJECTION-REPLY-RESIDUAL ENGINE

KAUTILYA LOCATED IN

NO SINGLE

SVĀMĪ WITHIN

SAPTĀṅGA ABSOLUTE?

YES, WITH

YES, IN

STRONG BUT

DOCTRINE / CLAIM	OBJECTION / PRESSURE	REPLY / RESIDUAL
KAUTILYA located in	higher law	AUSTIN vs KAUTILYA → command/obedience/sanction against rule/administration welfare/coercion/strategy
no single	legal form	CRITICAL ENGINE → OBJECTION → MONIST REPLY → RESIDUAL DIFFICULTY democracy → legal finality retained
svāmī within	dharma-bound divisible?	→ authority still derivative and divided federalism → constituent power → relocation is not proof
saptāṅga absolute?	coordinated associations	of one superior pluralism → shared is not sovereign → monism may misdescribe plural life

DOCTRINE / CLAIM

- KAUTILYA located in
- no single
- svāmī within
- saptāṅga absolute?
- yes, with

OBJECTION / PRESSURE

- higher law
- legal form
- dharma-bound divisible?
- coordinated associations
- constitutive core anxiety

REPLY / RESIDUAL

- AUSTIN vs KAUTILYA → command/obedience/sanction against rule/administration welfare/coercion/strategy
- CRITICAL ENGINE → OBJECTION → MONIST REPLY → RESIDUAL DIFFICULTY democracy → legal finality retained
- authority still derivative and divided federalism → constituent power → relocation is not proof
- of one superior pluralism → shared is not sovereign → monism may misdescribe plural life
- ORDERING RULE → internal critique (Kelsen, Hart) first, external critique second.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ORDERING RULE → internal critique (Kelsen, Hart) first, external critique second.

09

STAGE 09

GLOBALIZATION, STANDING TRAPS AND THE REUSABLE ANSWER SPINE

GLOBALIZATION, STANDING TRAPS AND THE REUSABLE ANSWER SPINE

SAME EVIDENCE

TRADE REGIMES

SUPRANATIONAL ADJUDICATION

EROSION THESIS TRANSFORMATION

RESILIENCE THESIS AUTHORITY LEAKS UPWARD AND OUTWARD SOVEREIGNTY IS

DECISIVE DISTINCTION

LEGAL INDEPENDENCE VS PRACTICAL INTERDEPENDENCE

SAME EVIDENCE → treaties

trade regimes

supranational adjudication

EROSION THESIS TRANSFORMATION / RESILIENCE THESIS
authority leaks upward and outward sovereignty is pooled,
constrained

DECISIVE DISTINCTION → legal independence vs practical
interdependence

SOURCE / DOCTRINE

- SAME EVIDENCE → treaties
- trade regimes
- supranational adjudication
- EROSION THESIS TRANSFORMATION / RESILIENCE THESIS authority leaks upward and outward sovereignty is pooled, constrained, negotiated and networked
- DECISIVE DISTINCTION → legal independence vs practical interdependence

ARGUMENT / MECHANISM

- PERSISTENT CLAIMS → war
- VERDICT → RECONFIGURED, not abolished
- TRAP CHECK → Austin's sovereign is not the state
- Laski is not an anarchist
- Bodin is not lawless

IMPLICATION / VERDICT

- 2 open with the taxonomy of sovereignty
- 3 state the doctrine in the thinker's own terms
- 4 objection and reply, objector named
- 5 graded verdict
- TIERS → 10 marks: steps 1-3 and a verdict; 15: full spine and one objection

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: steps 1-3 and a verdict; 15: full spine and one objection;.

10

STAGE 10

FIVE CLASSICAL ATTRIBUTES AND TWO SOVEREIGNTY-OF-THE-PEOPLE CLAIMS

FIVE CLASSICAL ATTRIBUTES AND TWO SOVEREIGNTY-OF-THE-PEOPLE CLAIMS

CLASSICAL LEGAL ATTRIBUTES

UNIVERSALITY INALIENABILITY

GOVERNMENT CHANGES WHILE STATE SOVEREIGNTY CONTINUES

JURISDICTION REACHES PERSONS AND ASSOCIATIONS IN THE TERRITORY

POWERS MAY BE DELEGATED; SOVEREIGN STATUS IS NOT MERELY

POPULAR SOVEREIGNTY

PEOPLE ARE THE INTERNAL SOURCE OF LEGITIMATE AUTHORITY

- SAME EVIDENCE → treaties
- trade regimes
- supranational adjudication
- EROSION THESIS TRANSFORMATION / RESILIENCE THESIS authority leaks upward and outward sovereignty is pooled, constrained, negotiated and networked
- DECISIVE DISTINCTION → legal independence vs practical interdependence

- PERSISTENT CLAIMS → war
- VERDICT → RECONFIGURED, not abolished
- TRAP CHECK → Austin's sovereign is not the state
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- TIERS → 10 marks: steps 1-3 and a verdict; 15: full spine and one objection

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: steps 1-3 and a verdict; 15: full spine and one objection;.

10

STAGE 10

FIVE CLASSICAL ATTRIBUTES AND TWO SOVEREIGNTY-OF-THE-PEOPLE CLAIMS

FIVE CLASSICAL ATTRIBUTES AND TWO SOVEREIGNTY-OF-THE-PEOPLE CLAIMS

CLASSICAL LEGAL ATTRIBUTES

UNIVERSALITY INALIENABILITY

GOVERNMENT CHANGES WHILE STATE SOVEREIGNTY CONTINUES

JURISDICTION REACHES PERSONS AND ASSOCIATIONS IN THE TERRITORY

POWERS MAY BE DELEGATED; SOVEREIGN STATUS IS NOT MERELY

POPULAR SOVEREIGNTY

PEOPLE ARE THE INTERNAL SOURCE OF LEGITIMATE AUTHORITY

CLASSICAL LEGAL ATTRIBUTES → absoluteness

universality inalienability

PERMANENCE → government changes while state sovereignty continues

UNIVERSALITY → jurisdiction reaches persons and associations in the territory

SOURCE / DOCTRINE

CLASSICAL LEGAL ATTRIBUTES → absoluteness

universality inalienability

PERMANENCE → government changes while state sovereignty continues

ARGUMENT / MECHANISM

UNIVERSALITY → jurisdiction reaches persons and associations in the territory

INALIENABILITY → powers may be delegated; sovereign status is not merely transferred

POPULAR SOVEREIGNTY → people are the internal source of legitimate authority

IMPLICATION / VERDICT

ROUSSEAU → general will claims common good; government remains an agent

NATIONAL SOVEREIGNTY → collective self-determination and territorial independence

TRAP → popular source, national self-rule and majority preference are not synonyms

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → popular source, national self-rule and majority preference are not synonyms.

11

STAGE 11

PLURALIST LINEAGE AND JURISDICTION-SAFE CONSTITUTIONAL COMPARISON

PLURALIST LINEAGE AND JURISDICTION-SAFE CONSTITUTIONAL COMPARISON

PLURALIST SCHOOL

REAL ASSOCIATIONS

FUNCTIONAL GROUPS

LAW, CONSTITUTION AND RESIDUAL COORDINATION

LASKI REMAINS THE OWNER

EARLY LEGAL-FICTION ATTACK; MATURE LIMITED SOVEREIGNTY

UNITED KINGDOM

PLURALIST SCHOOL → Figgis: real associations

Cole: functional groups

MacIver: law, constitution and residual coordination

LASKI REMAINS THE OWNER → early legal-fiction attack; mature limited sovereignty

UNITED KINGDOM → Parliament is the supreme legal authority in its jurisdiction

SYSTEM / DOCTRINE

PLURALIST SCHOOL → Figgis: real associations

Cole: functional groups

MacIver: law, constitution and residual coordination

LASKI REMAINS THE OWNER → early legal-fiction attack; mature limited sovereignty

DECISIVE DISTINCTION

UNITED KINGDOM → Parliament is the supreme legal authority in its jurisdiction

INDIA → Parliament exercises powers conferred and limited by a supreme Constitution

JUDICIAL REVIEW → enforces constitutional limits; it does not make courts sovereign

FEDERALISM → distribute competences without assuming legal and political finality coincide

EVALUATION / TRAP

GLOBAL LINK → pooling/delegation moves exercise of power, not universal sovereignty

VERDICT → modern sovereignty is competence-distributed and morally contestable

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → modern sovereignty is competence-distributed and morally contestable.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

ADVANCED SESSION 1 — THE CONCEPT AND TAXONOMY OF

ADVANCED SESSION 2 — BODIN

THE ABSOLUTE AND PERPETUAL POWER OF THE COMMONWEALTH

ADVANCED SESSION 3 — AUSTIN I

THE COMMAND THEORY OF LEGAL SOVEREIGNTY

ADVANCED SESSION 4 — AUSTIN II

CRITICISMS AND COMPATIBILITY WITH DEMOCRACY

OPTIONAL SOURCE WITNESS

ADVANCED SESSION 1 — The Concept and Taxonomy of Sovereignty

ADVANCED SESSION 2 — Bodin: The Absolute and Perpetual Power of the Commonwealth

ADVANCED SESSION 3 — Austin I: The Command Theory of Legal Sovereignty

ADVANCED SESSION 4 — Austin II: Criticisms and Compatibility with Democracy

ADVANCED OBJECTION

ADVANCED SESSION 5 — Kelsen and Hart: The Post-Austinian Refinement of Legal Sovereignty

ADVANCED SESSION 6 — Laski and the Pluralist Critique of Absolute Sovereignty

ADVANCED SESSION 7 — Kautilya I: Saptanga, the Svami and Dandaniti

ADVANCED SESSION 8 — Kautilya II: Mandala, Sadgunya, Yogakshema and Modern Relevance

COMPARATIVE NUANCE

ADVANCED SESSION 9 — Inter-Thinker Debates, Criticisms and Replies

ADVANCED SESSION 10 — Globalization, Contemporary Sovereignty and Common Traps

ADVANCED DOSSIER REFINEMENTS — USE SELECTIVELY

Core prerequisite: Bodin, Austin, Laski and Kautilya

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.